
Case	Title / Nature of Case
2:00 PM LINE 1	
19-CIV-02501	TODD YANCEY VS EDWIN BLUE
TODD YANCEY	PRO PER
EDWIN BLUE	DYLAN J. BYRD

MOTION FOR SUBSTITUTION OF SUCCESSOR IN INTEREST FOR DECEASED DEFENDANT EDWIN BLUE AND TO CONTINUE THE ACTION [CODE CIV. PROC., §§ 377.11, 377.20, 377.21, 377.41]

TENTATIVE RULING:

Plaintiff Todd Yancey's Motion for Substitution of Successor in Interest is **DENIED**. Plaintiff's Request for Judicial Notice is **GRANTED**, but not for the truth of the matters therein.

Defendant Carol Blue Hitchens's, individually and as Trustee of the Blue Family Trusts, Request for Judicial Notice is **GRANTED**, but not for the truth of the matters therein.

Hitchens's Objections to Evidence are ruled on as follows: No. 4 – sustained as to paragraph 10, overruled as to exhibit D; No. 5 – overruled as to the first sentence of the paragraph, sustained as to the second sentence; No. 6 – overruled as to ¶ 13 and exhibit E, sustained as to ¶¶ 14-15; No. 10 – sustained as to ¶ 16 and the first sentence of ¶ 17, overruled as to the second two sentences of ¶ 17 and ¶ 18 in its entirety; No. 11 – sustained as to plaintiff's description of the exhibit on the first page of the exhibit, overruled as to the rest of the exhibit; Nos. 12-13 – overruled.

A. Background

This is an action for damages based on the alleged conversion of intellectual property and trade secrets. Plaintiff alleged that he and the now-deceased Edwin Blue were co-partners in the creation of a computer system, but that Dr. Blue and other defendants converted and stole plaintiff's intellectual property and partnership interest and failed to pay plaintiff amounts agreed and due. (SAC, ¶¶ 2-3.)

On November 22, 2023, the court sustained without leave to amend Hitchens's demurrer to plaintiff's FAC as to the first through eleventh causes of action on the grounds that they were time-barred. (CMO #21, filed Nov. 22, 2023, at p. 2.) The court granted leave to amend to plead a cause of action for fraudulent transfer against Hitchens. (*Id.*, at p. 3.)

On May 2, 2023, Edwin Blue died. Code of Civil Procedure, section 366.2, subdivision (a) provides that:

If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of

action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.

(Code Civ. Proc., § 366.2, subd. (a).)

Plaintiff states in his motion that he attempted several times to open administration of Edwin Blue's estate to present a creditor's claim, but that "the probate court concluded that plaintiff — the decedent's litigation adversary and a self-interested creditor — was not a proper person to be appointed special administrator, together with related procedural deficiencies." (MPA, at p. 13:23-25.) Plaintiff did not file a valid creditor's claim within the one-year statutory period provided by Section 366.2.

On August 21, 2024, the court sustained Hitchens's demurrer to plaintiff's SAC without leave to amend holding that "Plaintiff's first eleven causes of action are time-barred based on plaintiff's failure to file a proper creditor's claim by the one-year anniversary of Edwin Blue's death, therefore, the twelfth cause of action for intentional fraudulent transfer also fails." (Order filed Aug. 21, 2024, at p. 2.)

On February 24, 2025, the court entered an order dismissing the FAC and SAC as to Hitchens, individually and as Trustee of the Blue Family Trusts and entered judgment "in favor of CAROL BLUE in all capacities and against plaintiff Todd Yancey." (Judgment of Dismissal, filed Feb. 24, 2025, at p. 2.)

On June 3, 2026, the court entered an order after a CMC which memorialized the following rulings:

The time to move for reconsideration of the order sustaining the demurrer in the 2019 matter has long since passed, as has the time to file a notice of appeal. (The court's files show that a notice of entry of the judgment of dismissal in the 2019 case was filed on February 26, 2025, and served on Todd Yancey electronically by Carol Blue Hitchens's counsel that same day. The notice of entry of the judgment of dismissal in the 2024 case as to defendants Robert Blue and Antonia Hitchens was filed on June 17, 2025, and served electronically on plaintiff by their counsel that same day. The notice of entry of the judgment of dismissal in the 2024 case as to Carole Blue Hitchens was filed on June 17, 2025, and served electronically by her counsel on plaintiff that same day.) Because the judgments are final in both cases, the court does not believe it has jurisdiction to reconsider the order sustaining the demurrer or the judgments. The court therefore will not reconsider the order sustaining the demurrer in the 2019 case or vacate the judgments in either case.

Plaintiff may file a "Motion for Substitution," seeking to substitute Carol Blue Hitchens as the defendant in the 2019 case in lieu of the deceased defendant, Dr. Edwin Blue.

(Order After Hearing, filed June 3, 2026, at p. 2.)

B. Discussion

Having now reviewed the parties' filings and relevant legal authority, the court finds that plaintiff's motion for substitution fails based on Code of Civil Procedure, section 366.2, and the court's prior demurrer orders and subsequent judgments.

"Section 366.2 is a 'general statute of limitations for all claims against a decedent.'" (*Dacey v. Taraday* (2011) 196 Cal.App.4th 962, 980 (*Dacey*), citing *Wagner v Wagner* (2008) 162 Cal.App.4th 249, 255.) Code of Civil Procedure section 366.2, subdivision (a) states,

If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.

Subdivision (b) provides that the limitations period "shall not be tolled or extended for any reason except as provided in any of the following, where applicable: [¶] ... [¶] (2) Part 4 (commencing with Section 9000) of Division 7 of the Probate Code (creditor claims in administration of estates of decedents)." Further, "[u]nder a claims statute, such as Probate Code section 9100, the party has an obligation to file a claim if there is any liability or legal obligation." (*Dacey, supra*, 196 Cal.App.4th at p. 982.) It is undisputed that plaintiff did not file a claim.

Apparently conceding that his motion is barred by Code of Civil Procedure, section 366.2, plaintiff argues that Carol Hitchens is estopped from invoking that section based on her failure to deliver Edwin Blue's will within 30 days of his death, failure to petition for administration, and alleged concealment of these intentions from plaintiff. Plaintiff argues that this resulted in injury to him in the form of no estate being opened, no personal representative being appointed, and no claims process being completed by him. Plaintiff also argues that Hitchens is estopped because she kept from plaintiff "that a will existed, what it provided, and whom it nominated." (Reply, at p. 11:6-7.)

Under Probate Code, section 8000, "[a]t any time after a decedent's death, any interested person *may commence* proceedings for administration of the estate of the decedent . . ." (Prob. Code, § 8000, subd (a), emphasis added.) The statute therefore allows administration but does not require it. Section 8200 provides that within 30 days of knowledge of the death of the testator, the custodian of a will shall deliver it to the court clerk and deliver a copy to the person named as the executor and provides that a custodian who fails to comply shall be liable for damages. Plaintiff has failed to demonstrate that he was damaged by Hitchens's failure to lodge the will within 30 days of Edwin Blue's death.

As plaintiff admits, he attempted to open administration but was unsuccessful, therefore acknowledging that no action or inaction on Hitchens's part caused him to refrain from those

efforts. As plaintiff also admits, his attempts failed due to deficiencies in his filings. The minute orders from the Probate Court attached to plaintiff's declaration and the record in this case do not support plaintiff's argument that it was Hitchens's fault he was unable to file a valid creditor's claim by the one-year deadline. The only finding that the record supports is that plaintiff failed to follow the proper procedure for filing a valid creditor's claim and the Code of Civil Procedure, section 366.2 deadline ran.

Plaintiff's arguments pursuant to Probate Code, sections 19400-19401, and Code of Civil Procedure, sections 377.40 and 377.41 also fail based on Section 366.2.

Each of these statutes is conditioned on a claim having survived and not abated. Here, the claims against decedent Edwin Blue have not survived because plaintiff did not file a creditor's claim within one year of Dr. Blue's death. These statutes therefore do not support the instant motion.

In his reply, plaintiff argues that Probate Code, section 19001 "conditions liability on the probate estate being 'inadequate,'" and that in *Spears v. Spears* (2023) 97 Cal.App.5th 1294, 1303-1305 (*Spears*), the court held that "claims against a decedent may be asserted where no probate proceeding has been opened." (Reply, at pp. 4:18-19, 5:20-21.) Plaintiff also argues that Probate Code, section 850 provides the "companion petition for trust property claimed to be subject to a creditor of the deceased settlor." (*Id.*, at p. 5:16-17.) Plaintiff again argues that Carol Hitchens is Edwin Blue's successor-in-interest under Code of Civil Procedure, section 377.11.

Plaintiff fails to note that in *Spears* the court addressed the Section 366.2 statute of limitations and held that the creditor's claim as to one alleged oral agreement but not as to the second was time-barred. (*Spears, supra*, 97 Cal.App.5th at p. 1302; see also *Embree v. Embree* (2004) 125 Cal.App.4th 487, 494 [Probate Code section 19400 "permits a creditor to proceed against property distributed to the beneficiaries of the judgment debtor's revocable living trust, subject to the one-year limitation period of section 366.2."], citing cases.)

Dr. Blue died over three years ago. Plaintiff cannot ignore the effect of Section 366.2. Plaintiff's claims are time-barred and the motion is therefore denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 2

20-CIV-01712 SAMANTHA LIAPES VS FACEBOOK, INC.

SAMANTHA LIAPES
FACEBOOK, INC.

JAHAN C. SAGAFI
CHRISTOPHER CHORBA

VERIFIED APPLICATION OF MICHAEL C. DANNA TO APPEAR AS COUNSEL PRO HAC VICE

TENTATIVE RULING:

The pro hac vice application filed by Michael C. Danna is **GRANTED**.